

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ELLION WRIGHT,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER NELSON NIN, SERGEANT ANGEL DELGADO, POLICE OFFICER ANARITZA GONZLEZ, POLICE OFFICER JOSE SANTIAGO, POLICE OFFICER ORTIZ, and POLICE OFFICERS JOHN DOES # 1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 14, 2017

Yours, etc.

/s/

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JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: Police Officer Nelson Nin, 40th Precinct,
Sergeant Angel Delgado, 40th Precinct

Police Officer Anaritzza Gonzalez, 40th Precinct
Police Officer Jose Santiago, 40th Precinct Detective Squad
Police Officer Ortiz, 40th Precinct Detective Squad

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ELLION WRIGHT,

Plaintiff,

-against-

POLICE OFFICER NELSON NIN, SERGEANT ANGEL DELGADO, POLICE OFFICER ANARITZA GONZLEZ, POLICE OFFICER JOSE SANTIAGO, POLICE OFFICER ORTIZ, and POLICE OFFICERS JOHN DOES # 1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ELLION WRIGHT, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 14, 2014, at approximately 8:30 p.m., plaintiff Ellion Wright, while lawfully present in 781 East 135th Street, Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, strip search and false imprisonment by the defendant New York City police officers. Thereafter, plaintiff was unlawfully detained at the 40th Precinct until arraignment and then at Riker's Island until February 25, 2014. Plaintiff was maliciously prosecuted and denied the right to a fair trial in New York County Criminal Court until all criminal charges brought against plaintiff were dismissed on or about February 25, 2014. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ELLION WRIGHT is a resident of the state of New York.

3. POLICE OFFICER NELSON NIN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER NELSON NIN, is and was at all times relevant herein, assigned to the 40th Precinct.

5. POLICE OFFICER NELSON NIN, is being sued in his individual and official capacity.

6. SERGEANT ANGEL DELGADO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT ANGEL DELGADO, is and was at all times relevant herein, assigned to the 40th Precinct.

8. SERGEANT ANGEL DELGADO, is being sued in his individual and official capacity.

9. POLICE OFFICER ANARITZA GONZLEZ, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER ANARITZA GONZLEZ, is and was at all times relevant herein, assigned to the 40th Precinct.

11. POLICE OFFICER ANARITZA GONZLEZ, is being sued in his individual and official capacity.

12. POLICE OFFICER JOSE SANTIAGO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER JOSE SANTIAGO, is and was at all times relevant herein, assigned to the 40th Precinct Detective Squad.

14. POLICE OFFICER JOSE SANTIAGO, is being sued in his individual and official capacity.

15. POLICE OFFICER ORTIZ, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. POLICE OFFICER ORTIZ, is and was at all times relevant herein, assigned to the 40th Precinct Detective Squad.

17. POLICE OFFICER ORTIZ, is being sued in his individual and official capacity

18. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-4 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On February 14, 2014, at approximately 8:30 p.m., plaintiff Ellion Wright, while lawfully present in 781 East 135th Street, Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, strip search and false imprisonment by the defendant New York City police officers. Thereafter, plaintiff was unlawfully detained at the 40th Precinct until arraignment and then at Riker's Island until February 25, 2014. Plaintiff was maliciously prosecuted and denied the right to a fair trial in New York County Criminal Court until all criminal charges brought against plaintiff were dismissed on or about February 25, 2014.

25. Specifically, On February 14, 2014, at approximately 8:30 pm, plaintiff was lawfully present at the homeless shelter located at 781 East 135th Street, Bronx, New York, where he was staying at the time when defendants arrived at the location and unlawfully stopped, questioned, and frisked plaintiff, without reasonable suspicion or probable cause.

26. The defendants accused plaintiff of committing a robbery without a factual basis to support their allegations.

27. Plaintiff obtained records from the homeless shelter that documented that he was present at the homeless shelter at the time and on the date of the robbery the defendants wrongfully accused him of committing.

28. Nevertheless, the defendant police officers proceeded to unlawfully handcuff, falsely arrest and falsely imprison plaintiff without probable cause or any legal justification.

29. The defendant officers proceeded to unlawfully search plaintiff's person without any legal justification to conduct the search and failed to recover any drugs, weapons or illegal contraband from plaintiff or from his possession, custody or control.

30. The defendant unlawfully seized plaintiff without his consent and transported claimant to the 40th police precinct, unlawfully processed his arrest, fingerprinted plaintiff and photographed him and detained him in a holding cell for several hours.

31. Plaintiff was unlawfully strip searched at the 40th precinct without any basis and no drugs, contraband or weapons were recovered from the strip search.

32. Eventually, the defendant officers transported plaintiff to Bronx Central Booking whereat plaintiff was unlawfully detained until he was arraigned and charged with crimes that the officers had no basis for believing he committed on or about February 15, 2014.

33. Plaintiff could not post bail at arraignment and was remanded into New York City Department of Correction custody and detained on Riker's Island until February 25, 2014 when he was released from custody.

34. The police officers maliciously initiated the prosecution against plaintiff by providing the DA's Office with false, misleading, and incomplete information regarding the facts that formed the officers' basis for arresting plaintiff.

35. After the New York City Police Officers falsely arrested plaintiff on January February 15, 2014, they charged plaintiff with crimes they had no basis to allege he committed and maliciously prosecuted him.

36. The criminal prosecution of plaintiff was maliciously initiated without probable cause by New York City Police Officers, on February 15, 2014, when the police officers forwarded false, misleading, and/or incomplete information and/or evidence to the Bronx County District Attorney's Office as an explanation for why they allegedly had probable cause to arrest and prosecute plaintiff.

37. At no time did the police officers have any legal justification or probable cause to believe plaintiff had committed any crime.

38. Notably, at no time did the police recover any drugs, guns, or contraband of any kind from plaintiff's person.

39. Nevertheless, plaintiff was handcuffed and falsely placed under arrest.

40. Further, the NYPD officers signed and executed a criminal court complaint that contained false, misleading and incomplete information and/or evidence under oath and under the risk of a penalty of perjury.

41. Thereafter the prosecution was maliciously continued by said police officers without probable cause until it was dismissed on or about February 25, 2014, when the criminal prosecution against plaintiff terminated in his favor.

42. Throughout the course of the criminal prosecution plaintiff was forced to appear in Bronx Criminal Court on several occasions before the false charges brought against him were dismissed and terminated in his favor.

43. Those officers that did not touch claimant failed to intervene and protect him from being falsely arrested, falsely imprisoned, unlawfully stopped, questioned, frisked, searched, seized, assaulted, battered, subjected to excessive force, and maliciously prosecuted.

44. Upon his release from custody at arraignment, plaintiff obtained medical attention for the injuries to his wrist, upper and lower back, foot, both knees, and body caused by the officers' unlawful conduct.

45. After the New York City Police Officers falsely arrested plaintiff, on February 14, 2014, they charged plaintiff with crimes they had no basis to allege he committed and maliciously prosecuted him.

46. As a result of the malicious prosecution against plaintiff, plaintiff experienced physical, personal, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

47. Additionally, as a result of the malicious prosecution against plaintiff, plaintiff was forced make numerous Court appearances before the false charges against him were dismissed.

48. Plaintiff was falsely arrested, unlawfully strip searched and subjected to malicious prosecution by the officers.

49. At no time did the officers have probable cause or any legal justification to allege plaintiff committed a crime, nor did they possess any objective facts to indicate plaintiff committed a crime.

50. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, unlawful strip search, denial of due process, and malicious prosecution against plaintiff.

51. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process, force against plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights.

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

57. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

62. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

68. Defendants lacked probable cause to search plaintiff.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Upon arriving at the 40th Precinct, defendants forced plaintiff to endure a humiliating and intrusive and unlawful strip search without an individualized reasonable suspicion that plaintiff was concealing illegal drugs, weapons or other contraband based upon the particular characteristics of the arrestee, and/or the circumstances of the arrest of plaintiff.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Malicious Prosecution

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

79. Defendants commenced and continued a criminal proceeding against plaintiff.

80. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

81. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

82. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

89. In withholding/creating false evidence against plaintiff Ellion Wright, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

90. As a result of the foregoing, plaintiff Ellion Wright, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

95. Defendants failed to intervene to prevent the unlawful conduct described herein.

96. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

97. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

100. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Ellion Wright demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 14, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 14, 2017

/s/
STUART E. JACOBS